

LOK ADALATS AND OTHER COURTS

Article 39A -> legal services -> forum choice -> award, appeal and fairness

01

CONSTITUTIONAL ANCHOR

- Article 39A: equal-opportunity justice + free legal aid
- 42nd Amendment Act, 1976 inserted Article 39A
- Article 21: fair procedure + speedy trial + qualifying legal aid
- Hussainara | Khatri II | Suk Das | Anita Kushwaha

THEISIS: access must be effective, reachable, timely and affordable.

02

LEGAL-SERVICES LADDER

- NALSA ss 3-4: policy, schemes, funds, literacy, monitoring
- SCLSC s 3A | SLSA ss 6-7 | HCLSC s 8A
- DLSA ss 9-10 | Taluk Committee ss 11A-11B
- s 2(1)(c): proceeding assistance + legal advice

TRAP: NALSA is the apex authority, not the only delivery body.

03

ELIGIBILITY -> ENTITLEMENT

- s 12: SC/ST; trafficking/begar; woman/child; disability
- disaster/violence/atrocitiy; workman; custody; income
- s 13: prima facie case to prosecute or defend
- Income affidavit ordinarily sufficient unless disbelieved

TRAP: status-based categories are not reduced to one income test.

04

ORDINARY LOK ADALAT: ENTRY

- ss 19-20: pending case OR eligible pre-litigation matter
- Must lie within the relevant court's jurisdiction
- Non-compoundable offence excluded
- Referral/hearing opens conciliation, not merits adjudication

KEY: jurisdiction first, settlement second.

05

ORDINARY AWARD OR FAILURE

- Genuine settlement -> s 21 award -> deemed civil decree
- Final and binding; no statutory appeal; referred fee refund
- No settlement -> return pending case / pursue ordinary remedy
- Jalour Singh (2008): no compromise, no award, no merits power

LIMIT: narrow Articles 226/227 review for foundational defects.

06

NATIONAL LOK ADALAT

- Coordinated countrywide statutory Lok Adalat drive
- Each bench remains governed by ss 19-21
- National scale changes administration, not legal power
- Mega/mobile/continuous/e-format labels do not create courts

TRAP: not a separate constitutional or appellate court.

07

PLA: JURISDICTION

- Chapter VI-A, ss 22A-22E; standing pre-litigation body
- Public utility; transport, communication, utilities, sanitation
- hospital/dispensary, insurance and additionally notified service
- Check offence exclusion + currently notified pecuniary framework

TRAP: do not freeze an undated rupee ceiling.

08

PLA: SEQUENCE AND AWARD

- Statements/documents -> impartial conciliation
- Possible terms -> observations -> signed settlement if accepted
- Failure -> merits only for eligible dispute relating to no offence
- ss 22D-22E: natural justice; majority; final decree; executable

CANARA BANK (2022): conciliation steps cannot be skipped.

09

ORDINARY v PERMANENT

- Ordinary: pending/pre-litigation; consent-only outcome
- PLA: public utility; pre-litigation; bounded merits power
- Both: deemed-decree effect + statutory finality
- InterGlobe keeps powers distinct; Bar Council upholds VI-A

ANSWER LINE: shared finality does not mean shared jurisdiction.

10

FAMILY COURTS ACT, 1984

- s 3: State establishment after High Court consultation
- s 7: marriage/status/property/maintenance/custody jurisdiction
- s 9 settlement effort; ss 10-17 adapted but reasoned process
- s 19: High Court appeal/revision with express exclusions

TRAP: a Family Court can adjudicate; it is not a Lok Adalat.

11

GRAM NYAYALAYAS ACT, 2008

- s 3: State MAY establish after High Court consultation
- s 9 mobile courts; scheduled/notified civil + criminal scope
- s 26 civil conciliation; failure -> judicial decision
- ss 33-34: Sessions/District appeals with statutory limits

TRAP: statutory court, not mandatory Panchayat justice.

12

FORUM FIREWALL AND EXAM ROUTE

- Fast Track Court = capacity scheme
- Special Court = parent statute/notification
- Tribunals = Topic 46 | Mediation = separate consensual route
- Define -> source -> stage -> consent -> merits -> effect -> review

VERDICT: speed is legitimate only with jurisdiction and fairness.

A+

OPTIONAL ADVANCED DEPTH

- Consent quality: advice, comprehension and freedom from pressure
- Digital access: privacy, language, disability and offline choice
- Measure quality, durability and reach - not disposal alone
- Match forum to dispute rather than chasing aggregate numbers

ENRICHMENT: core answers remain complete without this panel.